

**Placer County Superior Court
10820 Justice Center Drive, Roseville**

**PROBATE CALENDAR NOTES
June 12, 2026, 8:30 AM, Department 40**

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NOTICE: CHANGE OF CALENDAR DEPARTMENT AND DATES

Beginning July 6, 2026, the Probate Calendar will be heard Mondays, 8:30 a.m., in Department 2, located at the Historic Courthouse, 101 Maple Street, Auburn. Hearings will automatically be rescheduled by the clerk's office and notices will be sent to petitioners. Petitioners may be required to re-serve and / or re-publish updated or corrected notices as the circumstances of each case may require. For further information, contact the clerk's office at (916) 408-6000.

These calendar notes are provided pursuant to Local Rule 80.1.4 for the probate calendar set for hearing **June 12, 2026, 8:30 AM, in Department 40**, Commissioner Michael A. Jacques, presiding.

Pursuant to Local Rule 80.1.4, these calendar notes are not a tentative ruling on the merits of any matter before the court. Remote appearances are generally available for this calendar, as provided in the Local Rules. Local Rule 10.24(G), governing remote appearances for most probate, conservatorship, and guardianship cases applies to this calendar.

Updated notes may be posted at any time and will generally be updated the court day prior to the hearing. Staff may respond to limited questions concerning calendar notes; however, court staff may not give legal advice to parties or attorneys. Messages may be left for the Office of Legal Research at (916) 408-6119.

1. S-PR-0002059 Kyle O'Brien Spec Needs Trust; In re the

11th trust account is recommended for approval as prayed.

2. S-PR-0008896 Ward, James Everett Jr - In Re the Estate of

Petition for final distribution is recommended for approval as prayed.

3. S-PR-0009178 George Doney Spec Needs Trust; In re the

4th / final SNT account

Appearance is required for continued hearing on 4th / final SNT account.

Petition to modify trust

Appearance is required for hearing on petition to modify trust.

4. S-PR-0009759 Borba, Shane - In Re the Estate of

Appearance is required for continued hearing re final distribution.

Missing required final distribution petition. Estate administration was required to conclude in August 2020. The final distribution petition is now nearly 5 years overdue.

5. S-PR-0011130 In Re the Moeller Fam Liv Trust

Status hearing re resolution of petitions to appoint successor trustee and to approve account

Appearance is required for continued status hearing re resolution of petitions to appoint successor trustee and to approve account.

Current status is needed.

Motion to be relieved as counsel

Appearance is required for hearing on petition to be relieved as counsel.

Because this matter was scheduled on the probate calendar, no tentative ruling is provided. Local Rule 80.1.4.

6. S-PR-0011804 In Re the Estate of Moore, Richard E

Missing notice of hearing for petition to determine estate property and order distribution. Missing service of notice of hearing.

Note: petitioner purports to appear as personal representative of decedent's estate. Final distribution was ordered in May 2025 and administrator was discharged January 2026. Petitioner thus has no ability to appear as administrator of the estate.

It is recommended this matter be continued to October 26, 2026, 8:30 a.m., in Department 2, to be heard with the petition to determine trust property. Department 2 is located at Historic Courthouse, 101 Maple Street, Auburn.

7. S-PR-0012109 In Re the Lucio Aceves Perez Liv Trust

Appearance is required for status hearing re trial.

8. S-PR-0012308 In Re the Marie E Gallagher 2003 Trust

Appearance is required for hearing on petition to suspend / remove trustee, for surcharge, and to appoint successor trustee.

9. S-PR-0012724 In Re the Henry V Upholt Jr & Eleanor R Upholt Trust

Appearance is required for continued hearing on 1st trustee account and petition to approve distribution.

10. S-PR-0012737 In Re the Estate of Beldner, Coleen Jundt

It is recommended estate administration be extended and that a further review be scheduled February 8, 2027, 1:00 p.m., in Department 2.

11. S-PR-0012896 In Re the Richard H Moore 2003 Rev Trust

Appearance is required for continued hearing re trust account.
Current status is needed.

12. S-PR-0012955 In Re the Estate of Joy, Merrilee Kay

Appearance is required for hearing on 3d-amended petition to confirm sale of real property. Note: the petition appears to have been filed in duplicate for no known purpose.

Missing notice of sale. Missing proof of publication of notice of sale.

Missing service of notice of confirmation hearing to buyer T Hussein.

Clarification is needed as to division of broker commissions (¶ 5d). The petition fails to identify which broker is to receive what portion of the sale price.

Clarification is needed: ¶ 3a alleges DOD value of \$460,000, directly contradicting the I&A filed 7-10-2015.

1st overbid appears to be incorrectly calculated. Using sale price information alleged in the complaint, first overbid is \$483,500.00.

In the event that the calendar notes are addressed to the court's satisfaction and the confirmation of sale proceeds, it is requested any bidders who attend the hearing check in with the clerk in advance, if feasible.

13. S-PR-0013162 In Re the Estate of Dinatale, Anthony N.

Petition for final distribution is recommended for approval as prayed.

14. S-PR-0013282 In Re the Estate of Poroshin, William Delmer James

Clarification is needed: this appears to be a non-cash estate. Clarification is needed as to how attorney fees are to be paid. The court ordinarily will not order fees from a non-cash estate with a means for the fees to be paid or collected.

15. S-PR-0013409 In Re the Estate of Smith, Robert Joseph

Petition for final distribution is recommended for approval as prayed.

16. S-PR-0013759 In Re the Dement Liv Trust

Petition to determine invalidity of trust amendment; remove trustee; determine beneficiaries

Appearance is required for continued hearing on petition to determine invalidity of trust amendment and for other relief.

Motion for judgment on the pleadings

Appearance is required for hearing on trustee's motion for judgment on the pleadings.

Note: the tentative ruling advisement in the notice of hearing does not apply to hearings on the court's probate calendar. See Local Rule 80.1.4. There is no requirement to request oral argument in order to appear at or be heard at the hearing.

Because this matter was scheduled on the probate calendar, no tentative ruling is available. Local Rule 80.1.4.

17. S-PR-0013833 In Re the Yellow Dog Trust

Appearance is required for continued hearing on petition to determine petitioner and trust property interests and for other relief.

18. S-PR-0013842 In Re the Estate of Kasparian, Theodore

Missing notice of hearing for petition to administer estate. Missing service of notice of hearing. Missing proof of publication of notice of hearing.

Missing required allegations at §§ 5a(3)-(4) (RDP); (7)-(8) (issue of predeceased child(ren)); § 6 (next relations where no spouse or child(ren)); and § 7 (if applicable). Clarification is needed: § 8 identifies petitioner as a sibling contrary to § 6 (see § 6b).

Missing proposed administrator's relationship to decedent (§ 3g(2)(c)).

Missing residence of proposed administrator (§ 3h).

Missing allegations concerning nature of decedent's estate (§ 3d).

Note: missing signed Duties form (DE-147). Clerk cannot issue letters until signed Duties form is filed. C.R.C. 7.150.

19. S-PR-0013872 In Re the Estate of Wallace, William

Petition to administer estate is recommended for approval as prayed.

20. S-PR-0014017 In Re the Estate of Selby, Jay Reed

Appearance is required for hearing on petition to administer estate.

Missing proof of publication of notice of hearing for petition to administer estate.

Note: a purported will of decedent has been lodged with the court. No one has petitioned to probate the will.

Note: missing signed Duties form (DE-147). Clerk cannot issue letters without signed duties form. Proposed personal representative did not petition for relief, has not appeared, and apparently has not consented to serve as personal representative.

21. S-PR-0014019 In Re the Estate of Fairbairn, Colleen

Spousal property petition is recommended for approval in part. The request to modify the prior deed to the property is not relief that can be granted in this proceeding.

22. S-PR-0014021 In Re the Judy Malavazos Trust

It is recommended the petition to determine trust property be denied.

Transfer of real property to a trust or creation of a trust for real property requires a writing. See Prob.C. § 15200(a)–(b); see also *Estate of Heggstad* (1993) 16 Cal.App.4th 943; *Ukkestad v. RBS Asset Finance Inc.* (2015) 235 Cal.App.4th 156. Petitioner offers no writing by decedent settlor establishing describing the property; because it is not described within the trust, the requested relief falls outside the reach of *Heggstad*.

Nor is relief available under *Ukkestad*. In *Ukkestad*, the court determined that an all-real-property funding clause can satisfy the statute of frauds to create a trust in real property not identified in the writing but which can be defined by extrinsic evidence such as real property records. *Ukkestad, supra*, 235 Cal.App.4th at 162–163. However, the trust provision in *Ukkestad* "assigned the ownership of all of [settlor's] real property to the trustees of the Trust *effective immediately*." *Id.* at 159 (emphasis added). *Ukkestad* did not involve after-acquired property and so does not hold that property acquired contrary to the trust after its execution is or automatically becomes trust property. Settlor acquired the subject property long after the trust was executed; no public records or other evidence at the time the trust was executed could have supplied an identification of the property as a trust asset.

Relief also cannot be granted under the pourover will: the will has no effect until probated and, when probated, requires estate administration. "In the absence of any transfer to [a] trust *prior to* [decedent's] death," assets become part of the decedent's estate despite will language expressing decedent's desire that assets be held in trust. *Placencia v. Strazicich* (2019) 42 Cal.App.5th 730, 735 & 743-744 (emphasis added). "It [is] error for the court to award [such property] directly to [a] trust in the absence of a probate proceeding." *Id.*, citing *Estate of Hart* (1957) 151 Cal.App.2d 271, 280–281. See also Prob.C. § 7001. "[A] probate court ha[s] no power to consider the legality of a will until it [is] regularly brought before it by a petition for its probate." *Estate of Burnett* (1935) 6 Cal.App.2d 116, 123.

These calendar notes are not a tentative ruling by the court on the merits of the petition. They are provided to assist the court and the parties to prepare for the hearing. Local Rule 80.1.4.

23. S-PR-0014025 In Re the Estate of Zhiry, Vasily

Missing age(s) of children of decedent (see ¶ 9 / Attachment 9).

Missing Attachment 7b (survivor's community property interest to be confirmed to her). See Petition ¶ 1b.

It is recommended the petition be denied or granted only in part. Petitioner appears to allege the subject property was the separate property of decedent, and that

decedent left 9 surviving children. Under Prob.C. § 6401(c)(3)(A), petitioner's intestate share is limited to 1/3 of the property.